

The court wonders if Plaintiff read the tentative ruling from 4/28/26.

**Disposition**

This Motion will be dropped.

**4. 9:00 AM CASE NUMBER: L25-12147**

**CASE NAME: CITIBANK N.A. VS. CESAR RIOS**

**\*HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

**FILED BY: CITIBANK N.A.**

**\*TENTATIVE RULING:\***

**Background**

Plaintiff filed a Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

**Analysis**

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$3,650.27, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$583.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,233.88.

Plaintiff to file order on Motion, as well as submit Judgment.

5. 9:00 AM CASE NUMBER: L25-12428

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV

HEARING ON DEMURRER TO: OR IN THE ALTERNATIVE MTC MEDIATION AND ARBITRATION WITH MTS

FILED BY:

**\*TENTATIVE RULING:\***

Defendant filed a Demurrer to all causes of action in the Complaint filed on 12/19/25.

Plaintiff filed a timely Response and Declaration on 7/15/16. These documents were served on the Defendant.

**Background**

Defendant demurs to the Complaint, contending that Plaintiff's Complaint, in which the Plaintiff alleges a breach of contract stemming from a failure to pay attorney fees, is defective because the payment agreement contained a binding arbitration clause. Defendant argues that they never waived that clause.

Plaintiff, in the Complaint, suggests that it was Defendant's burden to trigger the arbitration process, and that Defendant failed to do so when they did not respond to written and verbal demands from Plaintiff.

The Complaint is silent about any attempts by the Plaintiff to initiate arbitration.

In the response to the Demurrer, Plaintiff argues that the arbitration provision of the agreement does not require arbitration before the filing of a lawsuit in the superior court.

The arbitration provision in the fee agreement, which is attached to the Complaint (Exhibit A, Clause 9), requires binding arbitration for fee disputes, and that the parties waive a de novo trial of the dispute. The agreement contains no language indicating whether any particular party is responsible for triggering the arbitration process. There is some language, toward the end of the provision, that appears to leave open the window for the filing of a civil suit by the Plaintiff, but this is limited to the jurisdiction of a small claims matter.

**Analysis**